

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1133
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-311, Arizona Revised Statutes, is amended to
3 read:

4 16-311. Nomination papers; statement of interest; filing;
5 definitions

6 A. Any person desiring to become a candidate at a primary election
7 for a political party and to have the person's name printed on the
8 official ballot shall be a qualified elector of the party and, not less
9 than one hundred twenty nor more than one hundred fifty days before the
10 primary election, shall sign and cause to be filed a nomination paper
11 giving the person's actual residence address or, if the person does not
12 have an actual residence address, a description of place of residence and
13 post office address, or, if the person's actual residence address is
14 protected pursuant to section 16-153, a post office box or private mailbox
15 address in the candidate's district or precinct, as applicable for a
16 district or precinct office, naming the party of which the person desires
17 to become a candidate, stating the office and district or precinct, if
18 any, for which the person offers the person's candidacy, stating the exact
19 manner in which the person desires to have the person's name printed on
20 the official ballot pursuant to subsection G of this section, and giving
21 the date of the primary election and, if nominated, the date of the
22 general election at which the person desires to become a candidate.
23 Except for a candidate for United States senator or representative in
24 Congress, a candidate for public office shall be a qualified elector at
25 the time of filing and shall reside in the county, district or precinct
26 that the person proposes to represent. A candidate for partisan public
27 office shall be continuously registered with the political party of which
28 the person desires to be a candidate beginning ~~no~~ NOT later than the date

1 of the first petition signature on the candidate's petition through the
2 date of the general election at which the person is a candidate.

3 B. Any person desiring to become a candidate at any nonpartisan
4 election and to have the person's name printed on the official ballot
5 shall be at the time of filing a qualified elector of the county, city,
6 town or district and, not less than one hundred twenty nor more than one
7 hundred fifty days before the election, shall sign and cause to be filed a
8 nomination paper giving the person's actual residence address or, if the
9 person does not have an actual residence address, a description of place
10 of residence and post office address, or, if the person's actual residence
11 address is protected pursuant to section 16-153, a post office box or
12 private mailbox address in the candidate's county, city, town or district
13 and ward or precinct, as applicable for a county, city, town or district
14 and ward or precinct office, stating the office and county, city, town or
15 district and ward or precinct, if any, for which the person offers the
16 person's candidacy, stating the exact manner in which the person desires
17 to have the person's name printed on the official ballot pursuant to
18 subsection G of this section and giving the date of the election. A
19 candidate for office shall reside at the time of filing in the county,
20 city, town, district, ward or precinct that the person proposes to
21 represent.

22 C. Notwithstanding subsection B of this section, any city or town
23 may adopt by ordinance for its elections the time frame provided in
24 subsection A of this section for filing nomination petitions. The
25 ordinance shall be adopted not less than one hundred fifty days before the
26 first election to which it applies.

27 D. All persons desiring to become a candidate shall file with the
28 nomination paper provided for in subsection A of this section a
29 declaration, which shall be printed in a form prescribed by the secretary
30 of state. The declaration shall include facts sufficient to show that,
31 other than the residency requirement provided in subsection A of this
32 section and the satisfaction of any monetary penalties, fines or judgments
33 as prescribed in subsection J of this section, the candidate will be
34 qualified at the time of election to hold the office the person seeks, and
35 that for any monetary penalties, fines or judgments as prescribed in
36 subsection J of this section, the candidate has made complete payment
37 before the time of filing.

38 E. The nomination paper of a candidate for the office of United
39 States senator or representative in Congress, for the office of
40 presidential elector or for a state office, including a member of the
41 legislature, or for any other office for which the electors of the entire
42 state or a subdivision of the state greater than a county are entitled to
43 vote, shall be filed with the secretary of state ~~no~~ NOT later than 5:00
44 p.m. on the last date for filing.

45 F. The nomination paper of a candidate for superior court judge or
46 for a county, district and precinct office for which the electors of a
47 county or a subdivision of a county other than an incorporated city or

1 town are entitled to vote shall be filed with the county elections officer
2 ~~no~~ NOT later than 5:00 p.m. on the last date for filing as prescribed by
3 subsection A of this section. The nomination paper of a candidate for a
4 city or town office shall be filed with the city or town clerk ~~no~~ NOT
5 later than 5:00 p.m. on the last date for filing. The nomination paper of
6 a candidate for school district office shall be filed with the county
7 school superintendent ~~no~~ NOT later than 5:00 p.m. on the last date for
8 filing.

9 G. The nomination paper shall include the exact manner in which the
10 candidate desires to have the person's name printed on the official ballot
11 and shall be limited to the candidate's surname and given name or names,
12 an abbreviated version of such names or appropriate initials such as "Bob"
13 for "Robert", "Jim" for "James", "Wm." for "William" or "S." for "Samuel".
14 Nicknames are permissible, but nicknames, abbreviated versions or initials
15 of given names may not suggest reference to professional, fraternal,
16 religious or military titles and may not include a slogan, a promotional
17 word or phrase or any word that does not actually constitute a nickname.
18 No other descriptive name or names shall be printed on the official
19 ballot, except as provided in this section. Candidates' abbreviated names
20 or nicknames may be printed within quotation marks. The candidate's
21 surname shall be printed first, followed by the given name or names.

22 H. Not later than the date of the first petition signature on a
23 nomination petition, a person who may be a candidate for office pursuant
24 to this section shall file a statement of interest with the appropriate
25 filing officer for that office. The statement of interest shall contain
26 the name of the person, the political party, if any, and the name of the
27 office that may be sought. Any nomination petition signatures collected
28 before the date the statement of interest is filed are invalid and subject
29 to challenge. This subsection does not apply to:

30 1. Candidates for elected office for special taxing districts that
31 are established pursuant to title 48.

32 2. Candidates for precinct committeeman.

33 3. Candidates for president or vice president of the United States.

34 I. A person who does not file a timely nomination paper that
35 complies with this section is not eligible to have the person's name
36 printed on the official ballot for that office. The filing officer shall
37 not accept the nomination paper of a candidate for state or local office
38 unless the person provides or has provided all of the following:

39 1. The financial disclosure statement as prescribed for candidates
40 for that office. A CANDIDATE WHO HAS FILED A FINANCIAL DISCLOSURE
41 STATEMENT FOR THAT YEAR PURSUANT TO SECTION 18-444 FOR PUBLIC OFFICERS AS
42 DEFINED IN SECTION 38-541 IS DEEMED TO HAVE COMPLIED WITH THIS PARAGRAPH
43 AND AN ADDITIONAL FILING IS NOT REQUIRED FOR THAT YEAR.

44 2. The declaration of qualification and eligibility as prescribed
45 in subsection D of this section.

46 J. Except in cases where the liability is being appealed, the
47 filing officer shall not accept the nomination paper of a candidate for

1 state or local office if the person is liable for an aggregation of \$1,000
2 or more in fines, penalties, late fees or administrative or civil
3 judgments, including any interest or costs, in any combination, that have
4 not been fully satisfied at the time of the attempted filing of the
5 nomination paper and the liability arose from failure to comply with or
6 enforcement of chapter 6 of this title.

7 K. For the purposes of this title:

8 1. "Election district" means this state, any county, city, town,
9 precinct or other political subdivision or a special district that is not
10 a political subdivision, that is authorized by statute to conduct an
11 election and that is authorized or required to conduct its election in
12 accordance with this title.

13 2. "Nomination paper" means the form filed with the appropriate
14 office by a person wishing to declare the person's intent to become a
15 candidate for a particular political office.

16 <<Sec. 2. Emergency

17 [This act is an emergency measure that is necessary to preserve the
18 public peace, health or safety and is operative immediately as provided by
19 law.]>>

20 Enroll and engross to conform

21 Amend title to conform

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